Brazoria County District Court

Cause No. 2025-CV-0045

Tracy Edwards, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	3-22-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies every material allegation and requests that Plaintiff be required to prove the charges and allegations by a preponderance of the evidence.

As and for affirmative defenses, Defendant states the following. First, Plaintiff's own negligence proximately caused or contributed to the occurrence, including following too closely and failing to keep a proper lookout, and any recovery must be reduced in proportion to Plaintiff's percentage of responsibility under Chapter 33 of the Texas Ciivl Practice and Remedies Code. Second, the injuries and damages claimed were caused, in whole or in part, by a preexisting or subsequent condition unrelated to the occurrence, and Defendant is not liable for such conditions. Third, Plaintiff has failed to mitigate damages by unreasonably delaying or declining recommended medical treatment, and any award must be reduced accordingly.